The nomination of a gaoler belongs to the magistrates. When he has been nominated, he is proposed to the procureur-general; and if, after a careful inquiry into his character, it appears that he has the reputation of a man of probity, he is fixed in the office, and takes an oath of fidelity. The office is freely given him without any expense whatever; so that keepers are not tempted, by paying for their places, to oppress their prisoners: to remove all pretext for so doing, rents which they formerly paid to the crown are remitted, and the leases given up.

As for debtors, their number is small. Of the two hundred and two prisoners in the Conciergerie, in 1778, but six were debtors. In the other prisons there were a few more. This perhaps is owing to the following good *arrêts*. Every bailiff who arrests and imprisons a debtor, must pay to the gaoler in advance, a month's aliment or subsistence, i.e. ten livres ten sous, equal to nine shillings English (provisions are at Paris cheaper in general than at London): and if the like sum be not paid within fourteen days after the end of every month, the prisoner is set at liberty. Besides this, the debtor pays no costs of arrests, etc. The whole of them falls on the creditor: and so do all expenses occasioned by his sickness or death.

As the best regulations are liable to be abused, prisoners are not thought sufficiently provided for by enacting good laws: the execution of them is carefully attended to. The substitutes of the attorney-general (should) visit the prisons once a week, to inquire if the rules be observed; to hear complaints of prisoners; to see if the sick be properly attended; and the like. Besides this, the Parliament of Paris sends to all the prisons five times a year two or three counsellers with a substitute of the attorney-general, and two clerks. They go at Christmas, Easter, Whitsuntide, one day before 15 August, St. Simon and Jude. There is in each prison (as in other foreign gaols) a room for their reception called the council-chamber. It is occupied at other times by the head-gaoler.

The arrival of this deputation is announced by boys, who, though offenders, are allowed to do little errands in the prison: these go round the court and into every room, giving notice of it aloud. The deputies go, without the gaoler or turnkeys, into every room and dungeon, and

1. They ask the prisoners one by one, if they have any complaint to make of the gaoler or his servants. But they never meddle with those who are confined by an order from the king.

2. They receive the petitions of prisoners who have been detained too long without trial.

3. In case of debts not exceeding two thousand livres (about ninety pounds) if the debtor can raise a third part of his debt and no more, they receive it for the creditors. How they clear him of the remaining two-thirds, I will show presently. They take notes of these matters in the prison; and give an account of all to the Parliament, at their general public meeting a day or two after.

In behalf of prisoners who have not been tried, the Parliament commonly orders the attorney-general to write in their name to the inferior judges, inquiring the causes of delay, or ordering expedition. If a prisoner be acquitted, he is discharged within twenty-four hours.

The laws of France do not in ordinary cases admit a debtor to bail without the consent of his creditor. But in the case mentioned above, the Parliament obliges creditors to accept of bail for the remainder of debts under two thousand livres. And even this bail seems a matter of mere form; for they sometimes take for bail men that are insolvent. I have heard there is no standing law for this; and that it is rather an immemorial custom: because the Parliament enacts a particular law for each case as it occurs. In France there are no insolvent acts. When prisoners have received their liberty from the king, or their creditors, they cannot be detained a moment for fees, hire of rooms, debts contracted in prison, or on any pretence whatever.

The deputies hear no complaints of the gaoler against his prisoners. When he has any to make, he applies to the chief justice, by whose order the prisoner was committed. If he was imprisoned by an order from the king, he applies to the lieutenant-general of the police; if without such an order, to the lieutenant-criminal.

Besides the deputation now mentioned, the Parliament appoints to each prison one of their own body, a counsellor. They always choose a gentleman of fortune and good character: he is called Commissaire de la Prison. His business is much like that of the deputation; and his office perpetual. By frequent discourse with prisoners I learned, that these officers are very humane to the distressed. They can (as the Parliament) oblige creditors to accept one-third part of debts under two thousand livres: but they use this power with much caution.

The Conciergerie has an airy court (fifty-five yards by thirty-